

23STCV23155 23STCV23155

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-09-15

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C729%2C09%2F15%2F2026

Source SHA-256: 04f218a7dba8ab332d7146ef3eb829024592134f6e7bb5378c0d00d446402811

Case Number: 23STCV23155 Hearing Date: September 15, 2026 Dept: 729

Superior

Court of California

County

of Los Angeles

DEPARTMENT 729

TENTATIVE

RULING

CHRISTOPHER

OLSEN,

vs.

ELENA

TALAN, et al.

Case No.:

23STCV23155

Hearing Date: September 15, 2026

Specially Appearing pro

per Defendant Arthur Melnikov, individually and as Trustee of the Alina

Kutsevol and Arthur Melnikov Revocable Trust dated June 6, 2014's motion to

quash service of summons is granted.

Specially Appearing pro
per Defendant Arthur Melnikov, individually and as Trustee of the Alina
Kutsevol and Arthur Melnikov Revocable Trust dated June 6, 2014 (collectively, "Melnikov")
("Specially Appearing Defendant") makes a special appearance for this Court to
quash service of the summons and complaint in this action on the grounds that
the summons and complaint were not properly served on him and therefore service
was not valid. (Notice of Motion, pgs. 1-2;
C.C.P. §418.10.)

Background

On September 25, 2026, Plaintiff
filed the operative Complaint against Defendants Elena Talan, Alina Kutsevol,
Ivan Kutsevol, Sarkis Mkrtchyan, and Marquee Builders, LLC (collectively,
"Defendants") for thirteen causes of action.

On February 23, 2026,
Plaintiff filed a DOE Amendment, naming Arthur Melnikov, an individual, as DOE
1. (2/23/26 Amendment to
Complaint.) On February 25, 2026,
Plaintiff filed a DOE Amendment, naming Arthur Melnikov, as as Trustee of The
Alina Kutsevol and Arthur Melnikov Revocable Trust dated June 6, 2014, as DOE
2. (2/25/26 Amendment to Complaint.)

On April 8, 2026, at 4:22 PM,
Plaintiff effected substituted service on Melnikov at 12929 Addison Street,
Sherman Oaks, CA 91423, a residential address, by serving "Jane Doe." (See April 16, 2026, Proofs of Service
at pg. 1.) Plaintiff proofs of
substituted service on April 16, 2026, indicating that he served Melnikov by
substituted service followed by mailing the documents on April 8, 2026, and
included declarations of diligence by process servers. (See April 16, 2026, Proofs of
Service.)

On May 18, 2026, Specially
Appearing Defendant filed the instant motion.
Plaintiff filed an opposition on September 1, 2026. Specially Appearing Defendant filed a
Declaration of Alina Kutsevol in reply on September 11, 2026.

Motion to Quash

“A

defendant, on or before the day of his or her time to plead . . . may serve and file a notice of motion . . . [t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (C.C.P. §418.10(a)(1).) By filing such motion, “a defendant makes a special appearance for the narrow purpose of contesting personal jurisdiction where the summons is defective.” (Stancil v. Superior Court (2021) 11 Cal.5th 381, 393.)

“California

is a jurisdiction which in general requires strict statutory compliance with requirements for service of original process.” (In re Abrams (1980) 108 Cal.App.3d 685, 693-694.) “Until statutory requirements are satisfied, the Court lacks jurisdiction over a defendant.” (Ruttenberg v. Ruttenberg (1997) 53 Cal.App.4th 801, 809.)

“In

the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court’s personal jurisdiction over a defendant.” (Flovayer International, Ltd. v. Superior Court (1997) 59 Cal.App.4th 789, 793; see also Calvert v. Al Binali (2018) 29 Cal.App.5th 954, 961 [“To establish personal jurisdiction, it is essential to comply with the statutory procedures for service of process.”].) “When a defendant challenges that jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.” (Lebel v. Mai (2012) 210 Cal.App.4th 1154, 1160, internal quotations omitted.)

C.C.P.

§415.20(b) provides that substituted service is allowed when personal service cannot be effected by reasonable diligence by leaving the summons and complaint at the “dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United State Postal Service post office box in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day

after the mailing.” (C.C.P. §415.20(b), emphasis added.)

“When

a defendant challenges the court’s personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove ... the facts requisite to an effective service.” (Summers

v. McClanahan (2006) 140 Cal.App.4th 403, 413.) The burden is on the plaintiff to demonstrate by a preponderance of the evidence that all jurisdictional criteria are met. (Ziller Electronics Lab GmbH v. Superior Court (1988) 206 Cal.App.3d 1222, 1232.)

Jurisdictional facts must be proved by admissible evidence. This generally requires documentary evidence and declarations by competent witnesses. (Rivelli v. Hemm (2021) 67 Cal.App.5th 380, 402.) If plaintiff meets this

burden, “it becomes the defendant’s burden to demonstrate that the exercise of jurisdiction would be unreasonable.” (Buchanan v. Soto (2015) 241 Cal.App.4th 1353, 1362.)

Where the parties’ declarations conflict on the jurisdictional facts, it is up to the trial court to decide which to believe. As long as supported by substantial evidence, its decision will not be disturbed on appeal. (Evangelize China Fellowship, Inc. v. Evangelize China Fellowship, Hong Kong (1983) 146 Cal.App.3d 440, 448-449.)

Here,

Plaintiff failed to meet his burden to demonstrate he served the summons and complaint in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof to Specially Appearing Defendant because the process server, Keith Redin, declares “When I arrived, an adult woman was present at the residence. . . She appeared to be a competent member of the household residing in the dwelling. [¶] I was within normal speaking distance of this woman. I informed her of the general nature of the documents and told her they were being served on Arthur Melnikov, individually and as Trustee. I then left the documents in her presence at the dwelling by throwing the documents over the property’s gate to her.” (Decl. of Redin ¶¶7-8.)

Plaintiff

cites to *In re Ball* (1934) 2 Cal.App.2d 578, 579, for support. However, the facts of the case are distinguishable from the instant circumstances.

The Ball process server, attempting personal service, stood “within about twelve feet” of the Ball defendant, “and with the

process in his hand, said: 'I have here another one of those things for you.' [The Ball defendant] replied: 'You have nothing for me,' and started to walk away. While [the Ball defendant] was moving away in a sidewise manner and looking at the server, the server handed or tossed the process toward [the Ball defendant], it falling a few feet from him, at the same time saying, 'Now you are served.' [The Ball defendant] did not pick it up, but continued to walk away from the premises." (Id.)

Here, unlike in Ball, the process server states there was a large gate in between him and the "adult woman . . . present at the residence." (Decl. of Redin ¶7.) Further, unlike the exchange between the Ball process server and defendant (i.e. "I have here another one of those things for you." [The Ball defendant] replied: "You have nothing for me"),

here, there is no indication that the adult woman at Melnikov's residence spoke with the process server or acknowledged his presence before the process server "left the documents in her presence at the dwelling by throwing the documents over the property's gate to her." (Decl. of Redin ¶8.) The gate's obstruction between the woman and the process server, coupled with the absence of the process server's indication that the adult woman acknowledged his presence, fails to demonstrate that substituted service was effected. Redin's declaration implying that he could see inside of the gate is contradicted by the declaration of the second process server, Omar Tamariz, who indicated in his declaration of diligence, "tall metal gate and door, can't see inside. No answer." (See April 16, 2026, Proofs of Service, PDF pg. 4 of 5, emphasis added.)

Notably, Redin's declaration does not indicate that he saw the adult woman present at the residence, rather, he implies he saw the woman by offering a description of her appearance. (Decl. of Redin ¶7.)

Redin's credibility is further undercut by the images of the driveway gate, which is too high for any process server to be seen from the inside of the property. (Decl. of Melnikov ¶18, Exh. B; Decl. of Alina Kutsevol, Exh. A.)

Accordingly,
Specially Appearing Defendants' motion to quash is granted.

Conclusion

Specially Appearing pro per Defendant's motion to
quash service of summons is granted.

Moving Party to give notice.

Dated: September
_____, 2026

Hon. Daniel M. Crowley

Judge of the Superior
Court